

25STCV27490 25STCV27490

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-03

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Case Number: 25STCV27490 Hearing Date: August 3, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Stefanie Cuesta

;

Plaintiff,

vs.

General Motors, LLC

;

Defendant.

Case No.:

25STCV27490

Hearing Date:

August 3, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
to Strike Portions of Complaint

MOVING PARTY: Defendant General Motors, LLC

RESPONDING
PARTY: Plaintiff Stefanie Cuesta

Motion to Strike
Portions of Complaint

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Defendant General
Motors, LLC ("Defendant") moves the court for an order striking portions of the
Complaint filed by plaintiff Stefanie Cuesta ("Plaintiff").

The court finds
that Plaintiff has not alleged facts entitling her to request civil penalties
under Code of Civil Procedure section 871.24 because she has not alleged
compliance with the vehicle retention requirement. (Code Civ. Proc., § 871.24,
subd. (c).)

Code of Civil
Procedure section 871.24, subdivision (a) states that a party seeking to
commence an action for civil penalties under the Song-Beverly Act must, at
least 30 days before commencing the action, "(1) [n]otify the manufacturer of the
consumer's name, the accurate Vehicle Identification Number ('VIN') of the
motor vehicle, and a brief summary of the repair history and problems with the

motor vehicle [¶]" and "(2) [d]emand that the manufacturer repurchase or replace the motor vehicle." (Code Civ. Proc., § 871.24, subd. (a).) The consumer must also have possession of the vehicle at the time the notice is sent. (Code Civ. Proc., § 874.21, subd. (c).)

The court finds that Plaintiff has not alleged that she has retained possession of the subject vehicle. Although Plaintiff asserts that possession can be inferred from the allegation that she made a buyback request, that argument would subsume the possession requirement of subdivision (c) within the general notice requirement of subdivision (a). Tellingly, subdivision (h), which authorizes claims for relief without civil penalties when there is no valid buyback request, also requires the consumer to have possession of the vehicle at the time of filing of the complaint. Therefore, a complaint under the Song-Beverly Act which, as here, does not allege continued possession of the vehicle at all does not demonstrate conformity with the laws of this state, whether it seeks civil penalties or not.

The burden is on the plaintiff "to articulate how it could amend its pleading to render it sufficient." (Palm Springs Villas II Homeowners Assn., Inc. v. Parth, (2016) 248 Cal.App.4th 268, 290.) To satisfy that burden, a plaintiff "must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy, (1976) 18 Cal.3d 335, 349.) Plaintiff has not shown how she could amend her pleading to correct the deficiency that requires striking Plaintiff's requests. The court therefore orders the requests for civil penalties stricken without leave to amend.

For the reasons stated above, the court grants Defendant's motion to strike Plaintiff's requests for civil penalties because they are not in conformity with the laws of this state, without leave to amend. (Code Civ. Proc., §§ 436, 871.24 subd. (c).)

ORDER

The court GRANTS defendant General Motors, LLC's motion to strike without leave to amend. The

court orders that paragraphs 29-31, 36, 39, and the prayer for civil penalties set forth on page 12, section f, line 5 of the Complaint filed by plaintiff Stefanie Cuesta are stricken.

The court orders defendant General Motors, LLC to file an answer to plaintiff Stefanie Cuesta's Complaint within 10 days of the date of this order.

The court orders defendant General Motors, LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 3, 2026

Robert B. Broadbelt III

Judge of the Superior Court